

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JULY 15, 2026
8:30 a.m.

3. DUSTIN NUNNERY V. SUZANA NUNNERY

25FL0486

This matter is before the court for hearing of the Request for Order (RFO) filed by the Respondent on May 29, 2026, to award child support and spousal support. Respondent concurrently filed an Income and Expense Declaration (I&E). Proof of service filed June 03, 2026, shows the RFO and supporting documents were electronically served upon Petitioner that same day.

On June 30, 2026, Petitioner filed a Responsive Declaration and I&E, both of which were served upon Respondent that same day.

On July 02, 2026, Respondent filed a supplemental declaration, a copy of which was electronically served upon Petitioner that same day, according to the proof of service, also filed July 02, 2026.

The court calculates Petitioner's gross monthly income as \$13,986. Petitioner's paystub issued June 16, 2026, shows a year-to-date total of \$72,309 through June 05, 2026. $\$72,309 / 5.17 \text{ months} = \$13,986 \text{ per month}$. Petitioner claims the following monthly credits: (1) \$603 for retirement payments, (2) \$325 for medical expenses, and (3) \$317 for job-related expenses. The court accepts the retirement and medical credits but disallows the job-related expenses on the grounds that Petitioner failed to submit any supporting documentation reflecting such expenses. The court notes that it appears from Petitioner's paystubs that he may be entitled to additional credits (i.e., union dues), but the court has not included them in the instant calculation because Petitioner does not list them on his I&E.

Respondent's I&E does not indicate how many hours she is currently working. She states she returned to work on June 20, 2026, and her hours vary. Absent additional information, the court will estimate that Respondent works 20 hours per week. Similar to Petitioner, it appears Respondent may be entitled to certain credits, but she has not listed any on her I&E.

With respect to custody timeshare, both parties agree in their respective I&Es that Respondent's timeshare is 70 percent and Petitioner's timeshare is 30 percent. The court will use the figures reflected in the parties' I&Es, even though Respondent claims in her supplemental declaration that Petitioner's timeshare is only 10 percent.

As shown in the attached XSpouse calculation printout, Petitioner is ordered to pay Child Support to the Respondent in the amount of \$837, beginning June 01, 2026, and the first of each month thereafter until further order of the court. The court orders the Petitioner to pay \$50 Child Support for the month of May 2026 (six percent of the monthly support amounts). Arrears created by the retroactive start date of this order shall be paid at the rate of \$63 per month beginning August 01, 2026 and the 1st day of each month thereafter until paid in full.

The Court denies the Respondent's request for Temporary Spousal Support, without prejudice. (The XSpouse calculation was run with Spousal Support and resulted in no order.)

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TENTATIVE RULING #3: AS SHOWN IN THE ATTACHED XSPOUSE CALCULATION PRINTOUT, PETITIONER IS ORDERED TO PAY CHILD SUPPORT TO THE RESPONDENT IN THE AMOUNT OF \$837, BEGINNING JUNE 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT. THE COURT ORDERS THE PETITIONER TO PAY \$50 CHILD SUPPORT FOR THE MONTH OF MAY 2026 (SIX PERCENT OF THE MONTHLY SUPPORT AMOUNTS). ARREARS CREATED BY THE RETROACTIVE START DATE OF THE COURT'S CHILD SUPPORT ORDER SHALL BE PAID AT THE RATE OF \$63 PER MONTH BEGINNING AUGUST 01, 2026 AND THE FIRST DAY OF EACH MONTH THEREAFTER UNTIL PAID IN FULL.

THE RESPONDENT'S REQUEST FOR AN AWARD OF TEMPORARY SPOUSAL SUPPORT IS DENIED WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

2026

Xspouse 2026-1-CA

Monthly Figures

Fixed Shares	Father	Mother	Monthly Figures		Cash Flow		
			2026			Guideline	Proposed
Number of children	0	1			Combined net spendable	17470	17470
Percent time with NCP	30.00%	0.00%			Percent change	0%	0%
Filing status	SINGLE HH/MLA		GUIDELINE				
Number of exemptions	1	2	Nets (adjusted)		Father		
Wages and salary	13986	11700			Payment cost/benefit	-837	-837
Self employed income	0	0	Father	8654	Net spendable income	7817	7817
Other taxable income	0	0	Mother	8817	Change from guideline	0	0
TANF CS received	0	0	Total	17471	% of combined spendable	45%	45%
Other nontaxable income	0	0	Support		% of saving over guideline	0%	0%
New spouse income	0	0	Addons	0	Total taxes	4404	4404
Employee 401-k contribution	0	0	Guideln CS	-837	Dep. exemption value	0	0
Adjustments to income	0	0	Alameda SS	-0	# withholding allowances	0	0
SS paid prev marriage	0	0	Total	-837	Net wage paycheck	9089	9089
CS paid prev marriage	0	0					
Health insurance	325	0	Proposed		Mother		
Other medical expenses	0	0	Tactic 9		Payment cost/benefit	837	837
Property tax expenses	0	0	CS	-837	Net spendable income	9654	9654
Ded interest expense	0	0	SS	-0	Change from guideline	0	0
Contribution deduction	0	0	Total	-837	% of combined spendable	55%	55%
Misc tax deductions	0	0	Saving	0	% of saving over guideline	0%	0%
Qualified business income deduction	0	0	Releases	0	Total taxes	2883	2883
Required union dues	0	0			Dep. exemption value	0	0
Mandatory retirement	603	0			# withholding allowances	0	0
Hardship deduction	0	0			Net wage paycheck	8336	8336
Other GDL deductions	0	0					
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		30 - 70	0	0	0 Father	837 Father	837 Father
	0000-00-00	30 - 70	0	0	0 Father	837 Father	837 Father

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4. SAVANNA ARNETT V. GAVIN NISHIHARA

25FL1181

This matter was continued from June 24, 2026. The court includes portions of its previous tentative ruling with modifications based on its decision on the set aside request as set forth below.

This matter is before the court on four separate issues: (1) an Order to Show Cause (OSC) regarding contempt, issued April 20, 2026; (2) a Request for Order (RFO) filed by the Petitioner on May 11, 2026, for move-away orders; (3) a motion, filed by the Respondent on June 02, 2026, to set aside and/or vacate default judgment; and (4) an RFO filed by the Respondent on June 03, 2026, to set aside and/or vacate the default judgment (entered December 02, 2025), as well as the Findings and Orders after Hearing (issued November 26, 2025), modify child custody and visitation, and award attorney fees and costs.

OSC Re: Contempt Issued April 20, 2026

As further explained below in the consideration of Respondent's RFO filed June 03, 2026, the court has set aside the portion of the Judgment for Dissolution regarding property orders which is the underlying basis of the alleged contempt. For that reason the Petitioner's OSC Re: Contempt is discharged.

RFO Filed by Petitioner May 11, 2026

Proof of service filed May 18, 2026, shows the RFO was electronically served upon Respondent that same day.

Petitioner's RFO includes a request for temporary orders authorizing her to temporarily reside with the children in the state of Arizona pending the hearing. The court denies Petitioner's request for temporary orders.

On June 02, 2026, Respondent filed a Responsive Declaration. To date, there is no proof of service for this Responsive Declaration in the court's file.

On June 11, 2026, Respondent filed a memorandum of points and authorities in opposition to Petitioner's RFO. Proof of service attached to the brief shows it was electronically served upon Petitioner on June 11, 2026.

The Petitioner's RFO will require the court to conduct an evidentiary hearing regarding the *LaMusga*² move-away factors. Appearances are required to participate in the selection of an evidentiary hearing date.

² *In re Marriage of LaMusga* (2004) 32 Cal.4th 1072.